CCRB INVESTIGATIVE RECOMMENDATION

Investigator:	Team:	CCRB Case #:	☑ Force ☑ Discourt. ☐ U.S.
Malcolm Turner	Squad #13	202501142	☑ Abuse ☐ O.L. ☐ Injury

Incident Date(s)	Location of Incident:	18 Mo. SOL	Precinct:
Thursday, 01/23/2025 1:45 PM	§ 87(2)(b)	7/23/2026	107

Date/Time CV Reported	CV Reported At:	How CV Reported:	Date/Time Received at CCRB
Thu, 01/23/2025 5:42 PM	IAB	Phone	Mon, 02/03/2025 7:14 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Jerry Brown	16200	974766	107 PCT
2. PO Sharon Jimenez	31028	970387	107 PCT
3. PO Anthony Salomone	00591	972935	107 PCT
4. PO Ruth Florville	02410	970521	107 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Sharon Jimenez	Force: Police Officer Sharon Jimenez used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Anthony Salomone	Force: Police Officer Anthony Salomone used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Jerry Brown	Force: Police Officer Jerry Brown used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Ruth Florville	Force: Police Officer Ruth Florville used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Sharon Jimenez	Abuse: Police Officer Sharon Jimenez frisked § 87(2)(b)	E . Substantiated
F . PO Jerry Brown	Abuse: Police Officer Jerry Brown frisked § 87(2)(b)	F . Substantiated
G . PO Ruth Florville	Abuse: Police Officer Ruth Florville frisked § 87(2)(b)	G . Substantiated
H . PO Sharon Jimenez	Abuse: Police Officer Sharon Jimenez searched § 87(2)(b)	H . Substantiated
I . PO Anthony Salomone	Abuse: Police Officer Anthony Salomone searched § 87(2)(b)	I . Substantiated
J . PO Jerry Brown	Abuse: Police Officer Jerry Brown searched § 87(2)(b)	J . Substantiated
K . PO Ruth Florville	Abuse: Police Officer Ruth Florville searched § 87(2)(b)	K . Substantiated
L . PO Anthony Salomone	Discourtesy: Police Officer Anthony Salomone spoke discourteously to § 87(2)(b)	L . Within NYPD Guidelines
M . PO Sharon Jimenez	Abuse: Police Officer Sharon Jimenez forcibly removed § 87(2)(b) to the hospital.	M . Substantiated
N . PO Anthony Salomone	Abuse: Police Officer Anthony Salomone forcibly removed § 87(2)(b) to the hospital.	N . Substantiated
O . PO Jerry Brown	Abuse: Police Officer Jerry Brown forcibly removed § 87(2)(b) to the hospital.	O . Substantiated
P . PO Ruth Florville	Abuse: Police Officer Ruth Florville forcibly removed § 87(2)(b) to the hospital.	P . Substantiated

Case Summary

On January 23, 2025, at approximately 5:42 p.m., Sergeant Bryan Hart of the 107th Precinct filed this complaint with IAB via telephone, generating the original log § 87(2)(b) On February 2, 2025, the CCRB received this complaint via IAB log § **(Board Review 01)**.

On January 23, 2025, at approximately 1:45 p.m., Police Officers Anthony Salomone, Sharon Jimenez, Jerry Brown, and Ruth Florville, of the 107th Precinct, responded to a call for an emotionally disturbed person (EDP) at § 87(2)(b) Street in Queens. Upon arrival, the officers spoke with § 87(2)(b) who had been informed of his eviction from the transitional housing shelter located at this address. § 87(2)(b) was placed in handcuffs, which he actively resisted, and the officers used physical force to overcome this resistance **(Allegations A, B, C, and D: Force – Physical Force, Within NYPD Guidelines)**. After handcuffing him, PO Jimenez, PO Brown, and PO Florville searched and frisked his person, and PO Salomone searched his person **(Allegations E, F, G, H, I, J, and K: Abuse of Authority – Frisk / Search of Person, Substantiated)**. PO Salomone told § 87(2)(b) "Now you've fucking lost it. Get the fuck over here and act like a fucking man" **(Allegation L: Discourtesy – Word, Within NYPD Guidelines)**. EMS personnel arrived on the scene and spoke with § 87(2)(b) and the officers before the officers forcibly removed § 87(2)(b) to the hospital **(Allegations M, N, O, and P: Abuse of Authority – Forcible Removal to the Hospital, Substantiated)**. No summons or arrests resulted from this incident.

The investigation received four body-worn camera (BWC) activations in regard to this incident from the BWCs of PO Salomone, PO Jimenez, PO Brown, and PO Florville **(Board Review 02)**.

Findings and Recommendations

Allegation (A) Force: Police Officer Sharon Jimenez used physical force against § 87(2)(b)
Allegation (B) Force: Police Officer Anthony Salomone used physical force against § 87(2)(b)
Allegation (C) Force: Police Officer Jerry Brown used physical force against § 87(2)(b)
Allegation (D) Force: Police Officer Ruth Florville used physical force against § 87(2)(b)
Allegation (E) Abuse of Authority: Police Officer Sharon Jimenez frisked § 87(2)(b)
Allegation (F) Abuse of Authority: Police Officer Jerry Brown frisked § 87(2)(b)
Allegation (G) Abuse of Authority: Police Officer Ruth Florville frisked § 87(2)(b)
Allegation (H) Abuse of Authority: Police Officer Sharon Jimenez searched § 87(2)(b)
Allegation (I) Abuse of Authority: Police Officer Anthony Salomone searched § 87(2)(b)
Allegation (J) Abuse of Authority: Police Officer Jerry Brown searched § 87(2)(b)
Allegation (K) Abuse of Authority: Police Officer Ruth Florville searched § 87(2)(b)
Allegation (L) Discourtesy: Police Officer Anthony Salomone spoke discourteously to § 87(2)(b)
Allegation (M) Abuse of Authority: Police Officer Sharon Jimenez forcibly removed § 87(2)(b) to the hospital.
Allegation (N) Abuse of Authority: Police Officer Anthony Salomone forcibly removed § 87(2)(b) to the hospital.
Allegation (O) Abuse of Authority: Police Officer Jerry Brown forcibly removed § 87(2)(b) to the hospital.
Allegation (P) Abuse of Authority: Police Officer Ruth Florville forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) stated **(Board Review 03)** that he was out looking for an apartment and a new job when he received a text from his case worker at the transitional housing shelter where he resided.

His case worker, § 87(2)(b) told him that he needed to return to the building for a mandatory meeting or he risked being removed from the housing unit. § 87(2)(b) is a former Marine who experiences PTSD. The meeting was regarding an incident with a fellow resident in the shelter in which § 87(2)(b) and another woman were verbally arguing with one another. § 87(2)(b) returned to his room to take care of his service dogs before going to the meeting with his case worker. One of the building's staff members then started knocking on § 87(2)(b) door, which made him upset because he told him that he needed to be left alone.

About five minutes after this interaction, four police officers arrived and told § 87(2)(b) that they were there to escort him out of the building. The officers asked him to recount the incident with the resident that prompted the meeting. § 87(2)(b) did not know who called the officers to the scene. He did not witness anyone call the police. § 87(2)(b) did not recall exactly what he told the officers after this. § 87(2)(b) planted his feet in the floor to resist the officers' efforts to escort him out. § 87(2)(b) became very vocal with the officers so he could avoid being put into a situation that would trigger his PTSD. The officers backed § 87(2)(b) into a corner by the window, turned him around, and put him in handcuffs. § 87(2)(b) did not allow the officers to pull his arm behind his back or move him. It took all the officers to place him in handcuffs. The officers threw § 87(2)(b) to the floor as they were escorting him to the elevator. § 87(2)(b) could not recall what specific actions the officers took to bring him to the ground.

At runtime 1:45 of PO Salomone's BWC **(Board Review 04)**, PO Salomone, PO Jimenez, PO Brown, and PO Florville arrive at the shelter and speak with a residential aide who informs them that leadership offsite called for 911. At 2:55, the officers arrive on the 11th floor. As they follow the residential aide, § 87(2)(b) can be heard yelling. At 3:05, they enter a room where § 87(2)(b) is speaking with two staff members. A staff member explains to the officers that § 87(2)(b) has been discharged from the program. § 87(2)(b) protests this verbally with the staff member. His tone is elevated, and he is visibly frustrated. At 4:05, § 87(2)(b) asks PO Salomone to remove his hand from the handle of his weapon and explains that he was a member of the Marine Corps and interprets this action as a threat. PO Salomone removes his hand from his weapon and asks § 87(2)(b) what happened and why he does not want to leave. At 4:15, § 87(2)(b) explains that he was speaking with a staff member who he felt disrespected by and who would not listen to him. At 4:25, § 87(2)(b) says, "So, here's what I do." He reaches toward the desk, grabs a pen, and holds it up vertically in front of his body at shoulder height. He says, "Here's a pen – speaking feather." PO Salomone steps toward § 87(2)(b) reaches for the pen, and says, "Just put the pen down." § 87(2)(b) steps back and says, "Hold on, hold on, hold on." PO Brown also steps forward and reaches for the pen. § 87(2)(b) backs up further toward the wall and tosses the pen behind his back. At 4:40, § 87(2)(b) asks, "Why did y'all have to come and do that?" PO Brown replies, "Because you had the pen in your hand." § 87(2)(b) says that he was trying to explain the situation, and PO Brown tells § 87(2)(b) that this action was interpreted as a threat to the officers.

At 4:54, § 87(2)(b) says, "So, they want me to leave, Imma leave. What are y'all doing? Can I walk? Can I leave?" PO Salomone says, "No." § 87(2)(b) says, "Okay, so I can't leave." At 5:15, PO Jimenez explains that the building called to have § 87(2)(b) removed because they do not want him there, and that he must leave. § 87(2)(b) gestures his arms rapidly toward the floor and says in an elevated tone, "They just told me that, so they been made this happen." He simultaneously stomps his foot on the ground. He does not make any movements toward the officers. PO Salomone steps toward § 87(2)(b) and reaches for his arms. § 87(2)(b) pulls his arms behind his back and says, "Listen, listen, I'm not tryna do nothing, bro." All four officers then step to § 87(2)(b) and attempt to place him in handcuffs. § 87(2)(b) verbally protests this and asks why he is being placed in handcuffs. The officers repeatedly tell him to relax. At 5:57, § 87(2)(b) says, "Alright you want me to be chill, let go of me." § 87(2)(b) repeatedly tells the

officers to stop touching him and moves his body away from the officers as they touch him. He appears visibly distressed, and his tone is elevated. At 6:20, after § 87(2)(b) is placed in handcuffs, he leans back against the wall and starts taking deep breaths. PO Brown and Jimenez explain that he was placed in handcuffs because his demeanor was aggressive. § 87(2)(b) calls the officers "rookies" and asks how this is helping him leave. He further explains that the staff members called him to the room just five minutes ago and he was not given the opportunity to leave.

At 6:54, § 87(2)(b) reaches abruptly with his right hand, which is still in handcuffs, into his front right pants pocket. PO Florville and PO Salomone reach to stop him, and § 87(2)(b) says, "Go in my pocket and take the phone out then, because I've been recording that whole fucking conversation." PO Brown removes the phone from § 87(2)(b) front right pocket. PO Salomone reaches into § 87(2)(b) front left pants pocket, and § 87(2)(b) drops his weight to the floor. At 7:08, § 87(2)(b) says, "Why you keep going in my pocket? I told you to get one thing and you going into more." At 7:13, PO Salomone says, "Check his pockets." He lifts § 87(2)(b) onto his feet. At 7:36, PO Brown enters § 87(2)(b) right pants pocket again and PO Florville enters § 87(2)(b) left pants pocket and turns it inside out. At 7:44, PO Florville enters § 87(2)(b) right pants pocket and turns it inside out. At 8:10, § 87(2)(b) asks, "Are you guys arresting me?" The officers respond that they are not. PO Jimenez says, "You're not arrested. You're gonna go to the hospital." § 87(2)(b) asks, "For what?" PO Florville responds, "For your behavior." § 87(2)(b) who is handcuffs, continues to try and break loose from the officers' grip as PO Jimenez, PO Brown, and PO Salomone hold onto his arms. At 8:42, PO Floville tells § 87(2)(b) to have a seat. § 87(2)(b) then tries to break free from the officers' grip again and drags them toward the couch in the room as they hold onto his arms. § 87(2)(b) again is visibly distressed and is yelling at the officers to get off of him.

At 9:00, PO Salomone walks into the hallway and asks for an "ETA on this bus" over the radio. At 9:15, PO Brown asks § 87(2)(b) who is now sitting on the couch, if he wants to have the handcuffs removed. PO Florville intervenes and says the officers will not take the handcuffs off. § 87(2)(b) then tries to bring his arms and the handcuffs under his legs and to the front of his body. PO Brown, PO Florville, and PO Jimenez reach to stop him. At 9:30, PO Salomone lifts § 87(2)(b) from the seat and says, "Now you've fucking lost it. Get the fuck over here and act like a fucking man." At 9:52, PO Salomone asks § 87(2)(b) if this is "normal behavior." § 87(2)(b) responds that this is normal behavior for a Marine, and he explains that he was a Marine from 2007 to 2013. At 10:26, PO Brown inquiries about § 87(2)(b) time in the Marines. § 87(2)(b) replies, "The Marine Corps did not give you the right tools to transition back into society." PO Brown asks, "You feel like it gave you PTSD?" § 87(2)(b) replies, "It definitely gave me PTSD." PO Brown asks, "What'd you see?" § 87(2)(b) replies, "I can't put my back against the wall without thinking about clearing streets anymore. I can't go anywhere, bro. That's why I got two fucking service dogs that's downstairs with me."

At 12:13, § 87(2)(b) says, "Just take these cuffs off me and I'm gonna figure out what the fuck I gotta do because I'm losing my head right now." PO Jimenez replies that they cannot. At 12:20, § 87(2)(b) asks how he is supposed to leave the building. PO Brown replies that he is going to the hospital. § 87(2)(b) verbally protests this again. PO Florville says, "The ambulance is gonna come and you're gonna get checked." PO Brown says, "When you talk to them, and if they feel like you're okay, then you're gonna be on your way." At 12:50, PO Florville says, "If you remain that calm when the ambulance comes, they'll make a better decision." § 87(2)(b) tone is lowered, and he no longer is pulling away from the officers. At 13:15, PO Salomone affirms that if § 87(2)(b) remains calm and EMS decides that he does not need to go to the hospital, then he will not go to the hospital. At 13:20: § 87(2)(b) says, "§ 87(2)(b) Marine Corps. § 87(2)(b)

§ 87(2)(b) Lance Corporal. § 87(2)(b) Lance Corporal. § 87(2)(b) Lance Corporal. § 87(2)(b) Lance Corporal." At 16:20, the officers walk § 87(2)(b) to the elevator. The EMS team simultaneously arrives. § 87(2)(b) asks to speak with EMS, and the officers tell him to go downstairs before he can speak with EMS. § 87(2)(b) tone becomes elevated again, and he physically resists PO Brown's efforts to walk him toward the elevator by planting his feet. At 17:22, § 87(2)(b) drops his weight to the floor. No officer appears to take any physical action to bring him to the floor. § 87(2)(b) says, "Why'd you pull me like that, bro?" The officers bring him down to the lobby, where he speaks with the EMTs. At 20:06, PO Salomone makes a phone call to a contact listed as "*Sgt Hart Nypd 107*." He informs the sergeant that § 87(2)(b) will be removed to the hospital, and he consults with the sergeant and the shelter staff on how to move forward with § 87(2)(b) service dogs. At 25:10, PO Salomone walks outside and speaks with an EMT. The EMT says, "So we don't want to take him. It feels like more of a dispute type of situation…. So, if you guys are making it an EDP, then we'll transport him to the hospital. It's your call." PO Salomone says, "Yeah, he's going."

PO Jimenez's BWC footage **(Board Review 05)** is largely consistent with PO Salomone's. At runtime 7:20, on the 11th floor, PO Jimenez enters § 87(2)(b) back right pants pocket with her left hand and simultaneously uses her right hand to feel the same pocket from the exterior. She removes a pen from his pocket and places it on the table. At 7:38, PO Brown enters § 87(2)(b) right pants pocket. At 7:47, § 87(2)(b) repeatedly asks the officers if they're happy and affirms that he has nothing on him. At 8:09, PO Jimenez removes § 87(2)(b) wallet from his back left pants pocket. At 17:24, § 87(2)(b) drops his weight to the floor and says, "Why'd you pull me like that?" No officers is captured pulling § 87(2)(b) to the floor. At 21:10, PO Jimenez and the EMT speak with a staff member who explains that they were in the process of meeting with § 87(2)(b) to formally discharge him from the program when he became irate and the staff called 911. PO Jimenez asks how § 87(2)(b) can retrieve his belongings.

At 22:45, an EMT asks PO Jimenez, "So, are we taking him as an EDP then?" PO Jimenez says, "Yeah." The EMT says, "So you're claiming him to be an EDP then?" PO Jimenez replies, "Yeah." The EMT walks back to where his partner, PO Brown, PO Florville, and § 87(2)(b) are standing and informs them that they will be removing § 87(2)(b) to the hospital. The staff members says, "My apologies, that's where I got confused when I saw them. But I trust your guys' call." PO Jimenez then walks toward § 87(2)(b) the other officers, and the EMTs and asks what is going on. At 23:06, the EMT says, "Because it sounds like it was more of a dispute, but if you're claiming it as, if you feel —." PO Jimenez says "We're trying to figure out exactly what happened, that's why…." The EMT interjects, "So, we'll take him as an EDP if you guys…." PO Jimenez says, "Yeah, just gimme a second. Let me not make that call yet." At 28:40, the staff member approaches PO Jimenez again and asks what's going on. She tells PO Jimenez that they did not call for an EDP and that they just called for § 87(2)(b) to be removed from the premises. PO Jimenez explains that the job came over as an EDP, and § 87(2)(b) behavior added to this assessment. The officers continue to deliberate with the residential staff and the EMTs as to how to proceed with § 87(2)(b) service animals. While in the lobby, § 87(2)(b) demeanor is — for the most part — much calmer; he is no longer speaking in an elevated tone or physically resisting the officers' restraint.

PO Brown's BWC footage **(Board Review 06)** is consistent with the other officers' footage. At runtime 7:13, on the 11th floor, § 87(2)(b) reaches for his right pants pocket to get his phone, and the officers reach to stop him. § 87(2)(b) tells the officers to reach into his pocket to take the phone out. PO Brown reaches into his right pants pocket and grabs his phone. PO Salomone reaches into his left pants pocket. § 87(2)(b) drops to the ground. At 7:25, PO Brown frisks § 87(2)(b) legs as he is sitting in the floor. At 7:34, PO Brown reaches into § 87(2)(b) left pants

pocket and removes AirPods and lip balm. At 7:55, PO Brown reaches into § 87(2)(b) right pants pocket again. At 49:15, while in the ambulance, PO Brown removes § 87(2)(b) handcuffs. At 58:00, they arrive at the hospital.

PO Florville's BWC **(Board Review 07)** is largely consistent with the other officers' BWC. At runtime 7:55, on the § 87(2) floor, PO Florville enters § 87(2)(b) left pants pocket. At 8:35, PO Florville frisks both of § 87(2)(b) back pants pockets.

The investigation obtained the Event Information for Event § **(Board Review 08)**. The Event is classified as a "*54E1 – Ambulance case: EDP/Inside.*" It contains the following material remarks:

> 1:30:36: "*AIDED MALE – VIOLENT EDP – IN ROOM W/ 2 DOGS – ACTING IRRATE (sic) – HITTING THE DOGS. NO INJ – UNK[NOWN] [WEAPONS]--*"
> 13:33:00: "*[MALE] IN MENAL CRISIS NO [WEAPONS] ACTING IRATE WAS BANGING ON DOORS EARLIER TODAY AND MAKING A LOT OF NOISE [MALE] WAS UNCOOP[ERATIVE] NOT VIOLENT.*"
> 13:33:13: "*LOC[ACTION] IS HOTEL FOR PREV[IOUSLY] RELEASED INMATES.*"
> 1:35:11: "*NOT UNDER INFLUENCE OF ALCOHOL OR DRUGS [MALE] WAS UPSET ABOUT A PREVIOUS INCIDENT.*"

The investigation obtained Aided Report# § 87(2)(b) **(Board Review 09)** which was prepared by PO Brown in regards to the incident. It contains the following material information: "*Aided didn't seem able to control his emotions and was acting aggressively towards MOS. Aided didn't seem to be under the influence of any substances but does suffer from PTSD."*

PO Salomone stated **(Board Review 10)** that the officers responded to a call for an EDP at a men's shelter. When the officers arrived, they spoke with a staff member who informed them that § 87(2) was upstairs and acting erratic. The staff members were also trying to conduct a mediation session, as he was in the process of being removed from the facility. PO Salomone did not recall if any staff members mentioned that § 87(2)(b) was possibly violent. When the officers arrived, § 87(2) was standing in the middle of the room and there was a desk next to him. Before the officers made any determinations, § 87(2)(b) grabbed a pen from a desk that was next to him and held it up with his hand. PO Salomone stated that this could have been used as an object to hurt himself or the officers, and that he interpreted § 87(2)(b) holding the pen as a threat. § 87(2)(b) said something to the officers about the building staff while he was holding the pen, but the officers were not sure what he was trying to convey.

The officers then placed § 87(2)(b) in handcuffs by turning him around and pulling his arms behind his back. § 87(2)(b) resisted this "a little bit." PO Salomone stated that not too much force was used to place him in handcuffs. Because he was flailing his arms and tensing up, the officers had to pull § 87(2)(b) arms together behind his back. At some point after § 87(2)(b) was handcuffed, he reached for one of his pockets. PO Salomone could not recall which pocket he reached for. Because he had reached for one of the pockets, the officers frisked and searched § 87(2) pockets. § 87(2)(b) said that the officers could go through the first pocket that he reached for. § 87(2)(b) never said that the officers could not go through his other pockets, but he did say, "Why are you going in my pockets?" PO Salomone did not observe anything that led him to believe § 87(2)(b) had a weapon. PO Salomone did not recall which pockets he or the other officers searched. (In the interview, PO Salomone's counsel noted that the NYPD requires an EDP to be searched before being placed in an ambulance, which PO Salomone confirmed.)

At the time he searched § 87(2)(b) PO Salomone had already decided that § 87(2)(b) was going to be removed to the hospital. PO Salomone made the decision to remove him to the hospital. There was no discussion between the officers prior to PO Salomone making that decision. When EMS arrived — about 10 minutes after the officers did — the officers already had handcuffed § 87(2)(b) EMS did not witness the majority of the incident, though they did witness § 87(2)(b) throwing himself to the floor while the officers were walking with him to the elevator. In scenarios when EMS arrives for a potential EDP, PO Salomone stated that it could be either the officers' or EMS's decision to remove someone to the hospital. EMS did not agree with the officers' determination that § 87(2)(b) was an EDP, but EMS did not witness anything that happened other than him flopping to the floor.

PO Jimenez stated **(Board Review 11)** that when the officers first interacted with § 87(2)(b) he was not happy and was acting irate. He wanted to know why the officers were there and why the staff was kicking him out. The officers were trying to understand what was happening, but § 87(2)(b) demeanor was very aggressive. While speaking to officers § 87(2)(b) picked up a pen and held it up in the air as he was explaining what happened. PO Jimenez interpreted this as a threat to the officers and to himself. § 87(2)(b) could have done anything with the pen. After § 87(2)(b) reached for his phone, PO Jiminez frisked and searched his back pocket and removed his wallet and a pen. When § 87(2)(b) was frisked and searched, the officers had already decided that he was going to be removed to the hospital. PO Jimenez did not believe § 87(2)(b) could have been armed. She did not observe anything on his body that looked like it could have been a weapon. It was a collective decision to remove § 87(2)(b) to the hospital.

PO Brown stated **(Board Review 12)** after speaking to § 87(2)(b) for a while, he reached for a pen while attempting to explain himself, but PO Brown was unsure of what he was trying to say. PO Brown interpreted § 87(2)(b) grabbing the pen to be a threat to himself and the other officers, as he believed § 87(2)(b) could have stabbed himself or the officers. The officers informed him that he was not under arrest or in trouble. He stated § 87(2)(b) was unpredictable, which was why the officers decided to place him in handcuffs. Officers gave him a verbal command to put his hands behind his back, but § 87(2)(b) did not comply. § 87(2)(b) resisted by tensing up his arms as the officers tried to handcuff him. Therefore, the officers had to forcibly put his arms behind him. The officers collectively decided to remove § 87(2)(b) to the hospital. § 87(2)(b) was transported to the hospital because he was determined to be an EDP. PO Brown cited § 87(2)(b) PSTD diagnosis and his overall behavior as the reasons he was classified as an EDP. PO Brown did not recall if he observed any outlines on § 87(2)(b) person that he believed might have been a weapon prior to frisking him. PO Brown could not recall exactly which pockets were frisked and searched by himself or the other officers. PO Brown did frisk § 87(2)(b) pocket prior to entering it, though he could not recall what he felt. PO Brown also frisked § 87(2)(b) legs. There was no indication that § 87(2)(b) might have been concealing a weapon on his legs; he was just checking. When § 87(2)(b) was frisked and searched, it was already decided that he was going to be transported to the hospital.

PO Florville stated **(Board Review 13)** that when the officers arrived, their initial intention was to ask § 87(2)(b) to leave. The officers went upstairs to check on § 87(2)(b) and § 87(2)(b) was yelling and screaming and refusing to leave. Shortly thereafter, § 87(2)(b) grabbed a pen and held it vertically by his side. § 87(2)(b) did not have any paper near him, and PO Florville thought that this was not normal. While PO Florville did not interpret this an immediate threat to herself or the officers, she stated that it was potential threat that the officers needed to neutralize. The officers then placed § 87(2)(b) in handcuffs. PO Florville helped the other officers grab his arms to handcuff him, though the other officers took the lead. She grabbed his arms to help pull them behind his body. Once § 87(2)(b) was in handcuffs, he turned his body to reach for his pocket,

which the officers interpreted as a threat. The officers told him not to reach for his pocket, and then § 87(2)(b) told them to reach for his phone. The officers then frisked and searched § 87(2)(b) pockets. The only reason PO Florville did so was because he had reached for his pockets. There was no indication that there was a weapon in any of his pockets. PO Florville stated that at this time, the officers did not yet know that he was going to the hospital, but that EMS was going to arrive and check it out and that the final determination lay with them.

According to NYPD Patrol Guide Procedure 221-01 **(Board Review 14)**, force may be used when it is reasonable to place a person in custody or prevent escape from custody. Any application of force must be reasonable under the circumstances, and de-escalation must be prioritized whenever possible. The reasonableness of the use of force by a police officer is determined by the following factors:

a) The nature and severity of the crime/circumstances
b) Actions taken by the subject
c) Duration of the action
d) Immediacy of the perceived threat of harm to the subject, members of service and/or bystanders
e) Whether the subject is actively resisting custody
f) Whether the subject is attempting to evade arrest by flight
g) Number of subjects in comparison to the number of MOS
h) Size, age and condition of the subject in comparison to the MOS
i) Subject's violent history, if known
j) Presence of hostile crowd or agitators
k) Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence

As per § 87(2)(b) statement and BWC footage, § 87(2)(b) resisted the officers' efforts to place him in handcuffs and restrain him by tensing his arms, planting his feet, and refusing to comply with verbal commands. § 87(2)(g) BWC footage does not show any additional force being used. § 87(2)(g) it is therefore recommended that **Allegations A**, **B**, **C**, and **D** be closed as **Within NYPD Guidelines**.

According to CCRB Operating Procedure 24-06 **(Board Review 15)**, frisks and searches of individuals prior to entering, or inside of, an ambulance to be transported to the hospital will be treated like Searches Incident to a Lawful Arrest (SILA) and should not be pleaded absent extenuating circumstances.

According to People v. De Bour, 40 N.Y.2d.210 **(Board Review 16)**, to frisk an individual, an officer must have reasonable suspicion to believe that the individual is armed.

§ 87(2)(g) . No officer made any remark on BWC suggesting that § 87(2)(b) was going to hospital until after the officers had already frisked and

searched him. Additionally, the officers made multiple suggestions on BWC that the decision to remove § 87(2)(b) to the hospital would depend on the assessment of EMS personnel and § 87(2)(b) behavior after the officers had already frisked and searched him. PO Salomone stated on BWC after § 87(2)(b) was handcuffed that if § 87(2)(b) remained calm and EMS decided that he did not need to go to the hospital, then he would not go to the hospital. Likewise, PO Brown said to § 87(2)(b) "When you talk to them, and if they feel like you're okay, then you're gonna be on your way." Similarly, when the EMT said, "So, we'll take him as an EDP if you guys…." PO Jimenez responded, "Yeah, just gimme a second. Let me not make that call yet." § 87(2)(g) The BWC footage shows that the officers engaged in significant deliberations in the lobby regarding the decision to remove § 87(2)(b) to the hospital after frisking and searching him upstairs. § 87(2)(g) it is therefore recommended that **Allegations E**, **F**, **G**, **H**, **I**, **J**, and **K** be **Substantiated**.

Per DCT Disciplinary Case No. 2015-15012 **(Board Review 17)**, officers may use profanities "in the context of a dynamic situation over which [they are] attempting to gain control," but may not do so when it "[serves] no legitimate purpose but to belittle" a civilian.

When PO Salomone used profanity ("Now you've fucking lost it. Get the fuck over here and act like a fucking man"), he was walking back from the hallway to help his fellow officers who were struggling to restrain § 87(2)(b) was actively resisting the officers' attempts to restrain him by trying to pull the handcuffs below his legs and in front of his body, and by tensing his arms and pulling away from the officers' grips. § 87(2)(g) It is therefore recommended that **Allegation L** be closed as **Within NYPD Guidelines**.

According to Patrol Guide Procedure 216-01 **(Board Review 18)**, when an aided person is placed in care of ambulance or medical personnel at a hospital, the authority and responsibility of the medical care of the aided rests solely with hospital personnel.

NYPD Patrol Guide Procedure 221-13 **(Board Review 19)** defines an emotionally disturbed person as someone who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to themselves or others, and authorizes officers to take into protective custody and have removed to the hospital in an ambulance, any person whom they believe are "emotionally disturbed" and likely to cause serious injury to themselves or others.

§ 87(2)(g)

§ 87(2)(g) [redacted] It is therefore recommended that **Allegations M, N**, **O**, and **P** be **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) [redacted]
- PO Sharon Jimenez (970387) has been a member of service for four years and seven months. She has been the subject of one closed complaint and one FADO&U allegation, which was not substantiated.
- PO Ruth Florville (970521) has been a member of service for four years and seven months. This is the first CCRB complaint to which she has been subject.
- PO Anthony Salomone (972935) has been a member of service for three years and nine months. He has been the subject of three closed complaints and five FADO&U allegations, none of which were substantiated. He is a subject in one other pending complaint.
- PO Jerry Brown (974766) has been a member of service for three years. He has been the subject of one closed complaint and one FADO&U allegation, which was substantiated.
  - 202300946 involved one substantiated "Abuse of Authority - Failure to provide RTKA card" allegation for which the Board recommended Command Discipline A. NYPD imposed Command Discipline - A.

Mediation and Civil Histories

- § 87(2)(b) declined to mediate this complaint.
- As of June 24, 2025, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident **(Board Review 22)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 13

Investigator:	*Malcolm Turner*	Inv. Malcolm Turner	7/30/2025
	Signature	Print Title & Name	Date
Squad Leader:	*JP Lozada*	IM Jean-Paul Lozada	07/30/2025
	Signature	Print Title & Name	Date
Reviewer:			
	Signature	Print Title & Name	Date